

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE TO GRANT AN EASEMENT TO THE UNITED STATES OF AMERICA, DEPARTMENT OF ENERGY, WESTERN AREA POWER ADMINISTRATION (WESTERN AREA POWER ADMINISTRATION), FOR THE INSTALLATION OF BURIED FIBER OPTIC AND OTHER COMMUNICATIONS CABLES WITHIN WESTERN AREA POWER ADMINISTRATION’S EXISTING ELECTRIC TRANSMISSION LINE EASEMENT OVER A PARCEL OF LAND OWNED BY THE CITY OF CHEYENNE, WYOMING.”

WHEREAS, a Contract and Grant of Electric Transmission Line Easement exists between the United States of America and Warren Livestock Company, recorded on September 6, 1962, in Book 735, Page 239, of the official records of the Laramie County, Wyoming, attached hereto as Exhibit A; and

WHEREAS, a portion of the land in the existing easement was recently purchased by the City of Cheyenne from Swan Ranch, LLC, the legal description of which is attached hereto as Exhibit A; and

WHEREAS, the United States of America, Department of Energy, Western Area Power Administration, wishes to redefine the terms and conditions of the existing easement as it is presently located on the City’s parcel of land and to allow for buried fiber optic and other communications cables, in addition to the uses currently allowed in the existing easement, the terms and conditions of which are set forth in the Contract and Grant of Easement, attached hereto as Exhibit A; and

WHEREAS, for consideration of the Contract and Grant of Easement, Western Area Power Administration agrees to pay the City the sum of Five Thousand Seven Hundred Dollars (\$5,700.00).

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor and City Clerk are authorized to enter into a Contract and Grant of Easement with the United States of America, Department of Energy, Western Area Power Administration, for the parcel of land owned by the City of Cheyenne and described in the attached Exhibit A, and to execute all further and additional documents as necessary.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
_____.

(Seal)

Richard L. Kaysen, Mayor

Attest:

Carol Intlekofer, City Clerk